

CHAPTER 6

An Act to enable proper financial provision to be made for the carrying out by the Law Society of the purposes of the Solicitors Acts, 1932 to 1941.

[15th December 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Fee payable in respect of issue of practising certificate.

22 & 23 Geo. 5. c. 37.

1. The following subsection shall be substituted for subsection (5) of section thirty-seven of the Solicitors Act, 1932 (which relates to the amount of the fee payable in respect of the issue of a practising certificate):—

“(5) There shall be paid to the registrar in respect of every practising certificate issued by him such fee, not exceeding the sum of five pounds, as the Master of the Rolls with the concurrence of the Lord Chancellor and the Lord Chief Justice, or (in case of difference) of one of them, may from time to time by order determine”.

Short title, citation, commencement and extent. 12, 13 & 14 Geo. 6. c. 21.

2.—(1) This Act may be cited as the Solicitors Act, 1950, and the Solicitors Acts, 1932 to 1941, the Solicitors, Public Notaries, &c., Act, 1949, and this Act may be cited together as the Solicitors Acts, 1932 to 1950.

(2) This Act shall come into operation one month after the passing thereof.

(3) This Act shall not extend to Scotland or Northern Ireland.

CHAPTER 7

Dangerous Drugs (Amendment) Act, 1950

ARRANGEMENT OF SECTIONS

Section

1. Cesser of limitations on extension to Northern Ireland of Acts amending the principal Act, and consequential repeals and amendments.
2. Amendments consequential on the supersession of the League of Nations by the United Nations.
3. Other amendments.
4. Saving for powers of Parliament of Northern Ireland.
5. Short title, interpretation and commencement.

SCHEDULE.—Amendments of the Principal Act and the Act of 1923 for the Purposes of the Application thereof to Northern Ireland.

An Act to facilitate the consolidation of enactments relating to dangerous drugs by removing limitations on the extension to Northern Ireland of certain Acts amending the Dangerous Drugs Act, 1920, repealing the corresponding Acts of the Parliament of Northern Ireland and making necessary consequential amendments; and to make, as respects dangerous drugs, certain other amendments of law which are requisite in consequence of the supersession of the League of Nations by the United Nations or expedient with a view to the consolidation of such enactments as aforesaid.

[15th December 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The extension to Northern Ireland of the following Acts amending the principal Act, namely, the Acts of 1923, 1925 and 1932, shall cease to be limited by reference to matters with respect to which the Parliament of Northern Ireland have not power to make laws, and accordingly—

Cesser of limitations on extension to Northern Ireland of Acts amending the principal Act, and consequential repeals and amendments.

(a) the following enactments are hereby repealed, that is to say:—

(i) subsection (3) of section six of the Act of 1923, subsection (2) of section seven of the Act of 1925, and subsection (2) of section five of the Act of 1932 (whereby the extension of those Acts to Northern Ireland is limited as aforesaid); and

(ii) the Acts of the Parliament of Northern Ireland respectively entitled the Dangerous Drugs and Poisons (Amendment) Act (Northern Ireland), 1924, the Dangerous Drugs Act (Northern Ireland), 1925, and the Dangerous Drugs Act (Northern Ireland), 1932 (which correspond to the Acts of 1923, 1925 and 1932); and

(b) the principal Act (as amended by the Acts of 1923, 1925 and 1932) shall have effect subject to the amendments specified in Part I of the Schedule to this Act and the Act of 1923 shall have effect subject to the amendments specified in Part II of that Schedule.

(2) Any Order of His Majesty in Council under—

(a) subsection (2) of section eight of the principal Act, as amended as aforesaid (which subsection empowers His

Majesty to apply Part III of that Act to new habit-forming drugs and substances from which they can be derived);

- (b) subsection (1) of section two of the Act of 1932 (which subsection empowers His Majesty to exempt from the prohibition imposed by that subsection on trading in, and manufacturing, new products obtained from the phenanthrene alkaloids of opium or the ecgonine alkaloids of the coca leaf any product as respects which He is satisfied that it is of medical or scientific value); or
- (c) subsection (3) of the said section two (which subsection empowers His Majesty to apply Part III of the principal Act to methyilmorphine, ethylmorphine and their respective salts),

being an Order in Council which is in force at the commencement of this Act, shall have effect as well in relation to Northern Ireland as in relation to Great Britain, and in Article 35 of the Government of Ireland (Adaptation of Enactments) (No. 3) Order, 1922 (which Article adapts references in the principal Act to His Majesty and Orders in Council), the reference to that Act shall be construed as a reference to the provisions thereof exclusive of the said section eight.

Amendments consequential on the supersession of the League of Nations by the United Nations.

2.—(1) Section six of the Act of 1923, section five of the Act of 1925 and sections two and three of the Act of 1932 shall have effect subject to the following amendments:—

- (a) references to the Hague Convention, the Geneva Convention (No. 1) and the Geneva Convention (No. 2) shall be construed as references to those Conventions as amended by the Protocol on Narcotic Drugs signed at Lake Success, New York, on the eleventh day of December, nineteen hundred and forty-six; and
- (b) for references to the Council of the League of Nations and the Secretary-General of the League of Nations there shall be substituted respectively references to the Economic and Social Council of the United Nations and the Secretary-General of the United Nations.

(2) In this section—

- (a) the expression “the Hague Convention” means the International Opium Convention signed at the Hague on the twenty-third day of January, nineteen hundred and twelve;
- (b) the expression “the Geneva Convention (No. 1)” means the International Opium Convention signed at Geneva on the nineteenth day of February, nineteen hundred and twenty-five; and

- (c) the expression " the Geneva Convention (No. 2) " means the Convention for the purpose of supplementing the provisions of the Conventions aforesaid which was signed at Geneva on the thirteenth day of July, nineteen hundred and thirty-one.

3.—(1) Section seven of the principal Act shall, in its application to Great Britain, have effect as if— Other amendments.

- (a) in paragraphs (a) and (b) of subsection (2) (which subsection, as amended by section twenty-eight of the Pharmacy and Poisons Act, 1933, requires that regulations under the said section seven for the purpose of controlling the manufacture of, and dealings in, drugs to which Part III of the principal Act applies shall provide for authorising persons lawfully carrying on business as authorised sellers of poisons to manufacture, retail, dispense and compound such drugs), for references to the shop there were substituted references to premises duly registered under Part I of the said Act of 1933; and

- (b) for subsection (3) there were substituted the following subsection:—

" (3) Nothing in any regulations made under this section shall be taken to authorise the sale by retail of poisons by any person who is not qualified in that behalf under, or otherwise than in accordance with, the provisions of the Pharmacy and Poisons Acts, 1852 to 1941, or to be in derogation of the provisions of those Acts for prohibiting, restricting or regulating the sale of poisons ".

(2) Subsection (3) of section two of the Act of 1923 shall, in its application to Great Britain, have effect with the omission of paragraph (b) thereof (which contains provisions with respect to consecutive sentences of imprisonment, being provisions the continuance in force of which in relation to Great Britain serves no useful purpose).

(3) So much of paragraph (2) of Article 2 of the Supreme Court of Judicature (Northern Ireland) Order, 1921 (which paragraph adapts statutory references to the Attorney General for Ireland) as provides that, in the case of a person's being appointed to act instead of the Attorney General for Northern Ireland in relation to any matters which are not for the time being within the powers of the Government of Northern Ireland, any reference in any enactment to the Attorney General for Ireland shall, in relation to those matters, be construed as a reference to the person so appointed instead of as a reference to the Attorney General for Northern Ireland, shall not apply to subsection (3) of section thirteen of the principal Act (which subsection, as

originally enacted, empowered the bringing in Ireland of summary proceedings for an offence against that Act within three months from the date on which evidence sufficient to justify a prosecution came to the knowledge of the Attorney General for Ireland).

Saving for powers of Parliament of Northern Ireland.

4. For the purposes of section six of the Government of Ireland Act, 1920, the Acts of 1923, 1925 and 1932 and this Act shall be deemed to have been passed before the day appointed for the purposes of that section.

Short title, interpretation and commencement.

5.—(1) This Act may be cited as the Dangerous Drugs (Amendment) Act, 1950, and the Dangerous Drugs Acts, 1920 to 1932, and this Act may be cited together as the Dangerous Drugs Acts, 1920 to 1950.

(2) In this Act—

(a) the expression “the principal Act” means the Dangerous Drugs Act, 1920; and

(b) the expressions “the Act of 1923,” “the Act of 1925” and “the Act of 1932” mean respectively the Dangerous Drugs and Poisons (Amendment) Act, 1923, the Dangerous Drugs Act, 1925, and the Dangerous Drugs Act, 1932, and the expression “the Acts of 1923, 1925 and 1932” shall be construed accordingly.

(3) This Act shall come into operation on such day as His Majesty may by Order in Council appoint.

SCHEDULE

Section 1.

AMENDMENTS OF THE PRINCIPAL ACT AND THE ACT OF 1923 FOR THE PURPOSES OF THE APPLICATION THEREOF TO NORTHERN IRELAND

PART I

Amendments of the Principal Act

1. Section seven of the principal Act shall, in its application to Northern Ireland, have effect subject to the following modifications—

(a) for references to the Pharmacy Act, 1868, there shall be substituted references to the Pharmacy and Poisons Acts (Northern Ireland), 1925 and 1945; and

(b) for the reference to the Council of the Pharmaceutical Society of Great Britain there shall be substituted a reference to the Council of the Pharmaceutical Society of Northern Ireland.

2. Subsection (1) of section ten of the principal Act (which confers powers of inspection) shall, in its application to Northern Ireland, have effect as if the reference to the Secretary of State included a reference to the Ministry of Home Affairs for Northern Ireland, and in subsection (1A) of that section (as set out in subsection (1) of section one of the Act of 1923) after the words “Great Britain” there shall be inserted the words “and Northern Ireland”.

3.—(1) In paragraph (d) of subsection (1) of section thirteen of the principal Act, as set out in subsection (1) of section two of the Act of 1923 (which paragraph penalises persons who in Great Britain aid, abet, counsel or procure the commission outside Great Britain of certain offences relating to drugs)—

(a) after the words “ Great Britain ”, in the first and third places where they occur, there shall be inserted the words “ or Northern Ireland ”; and

(b) after the words “ Great Britain ”, in the second place where they occur, there shall be inserted the words “ and Northern Ireland ”.

(2) At the end of subsection (2) of the said section thirteen, as so set out (which subsection provides, amongst other things, for the payment into the Exchequer of half of the amount of certain fines), there shall be added the following words “ and one half of the amount of any fine so imposed in proceedings taken by the direction of the Attorney General for Northern Ireland shall, notwithstanding anything in any other enactment, be paid into the Exchequer of Northern Ireland in such manner as the Ministry of Finance for Northern Ireland may from time to time direct ”.

(3) The said section thirteen shall, in its application to Northern Ireland, have effect with the substitution, for subsection (2A) thereof, as so set out (which restricts the institution of proceedings by indictment and the imposition of sentences of imprisonment in certain cases), of the following subsection:—

“ (2A) No person shall be proceeded against by indictment for an offence under this Act unless the proceedings are instituted by, or with the consent of, the Attorney General for Northern Ireland, and no person shall, on conviction for any offence of contravening or failing to comply with any regulation under this Act relating to the keeping of books or the issuing or dispensing of prescriptions containing drugs to which this Act applies, be sentenced to imprisonment without the option of a fine or to pay a fine exceeding fifty pounds, if the court dealing with the case is satisfied that the offence was committed through inadvertence and was not preparatory to, or committed in the course of, or in connection with, the commission or intended commission of any other offence against this Act ”.

(4) In the application of the said section thirteen to Northern Ireland the expression “ court of summary jurisdiction ” shall mean a court of summary jurisdiction constituted in accordance with the enactments (including enactments of the Parliament of Northern Ireland) for the time being in force in Northern Ireland relating to summary jurisdiction, and the expression “ summary conviction ” shall mean conviction in accordance with those enactments.

PART II

Amendments of the Act of 1923

4. Subsection (3) of section two of the Act of 1923 shall, in its application to Northern Ireland, have effect with the substitution, for paragraph (b) thereof, of the following paragraph:—

“(b) that, where any term of imprisonment is imposed under section thirteen of the Dangerous Drugs Act, 1920, on any person by a court of summary jurisdiction in respect of the non-payment of a fine for an offence against that Act, the provisions of section forty-four of the Summary Jurisdiction and Criminal Justice Act (Northern Ireland) 1935 (which relates to consecutive sentences of imprisonment) apply to that term of imprisonment”,

and for the purposes of the said subsection (3) as amended in its application to Northern Ireland by this paragraph the expression “court of summary jurisdiction” has the meaning assigned to it by sub-paragraph (4) of paragraph 3 of this Schedule.

5. In section five of the Act of 1923 (which relates to the calculation of percentages in the case of liquid preparations of drugs), the expression “regulations” shall mean, as well in the application of that section to Northern Ireland as in its application to Great Britain, regulations made by a Secretary of State.

6. In subsection (2) of section six of the Act of 1923 (which defines the expression “corresponding law” in the principal Act as amended by the Act of 1923) after the words “Great Britain” there shall be inserted the words “and Northern Ireland”.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Pharmacy Act, 1868	31 & 32 Vict. c. 121.
Dangerous Drugs Act, 1920	10 & 11 Geo. 5. c. 46.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Dangerous Drugs and Poisons (Amendment) Act, 1923	13 & 14 Geo. 5. c. 5.
Dangerous Drugs Act, 1925	15 & 16 Geo. 5. c. 74.
Dangerous Drugs Act, 1932	22 & 23 Geo. 5. c. 15.
Pharmacy and Poisons Act, 1933	23 & 24 Geo. 5. c. 25.